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California Lawmakers Introduce Landmark Bill to Phase Out Harmful UPF From School Meals

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WASHINGTON, March 21 -- The Environmental Working Group issued the following news release on March 19, 2025:

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California lawmakers introduce landmark bill to phase out harmful UPF from school meals

SACRAMENTO, Calif. - On Wednesday, California Assemblymember Jesse Gabriel (D-Encino) introduced a first-in-the-nation bill, A.B. 1264, to phase out "particularly harmful" ultra-processed food, or UPF, from school meals served in the state by 2032.

If enacted, the bill would - if task state scientists to work with University of California experts on identifying UPF to ban based on scientific research linking them to cancer, cardiovascular disease, metabolic disorders, neurological or behavioral issues, and other health harms.

"Our public schools should not be serving students ultra-processed food products filled with chemical additives that can harm their physical and mental health and interfere with their ability to learn," said Gabriel.

The bill has bipartisan support, including from state Assembly Republican Leader James Gallagher (R-East Nicolaus) and Progressive Caucus Chair Alex Lee (D-San Jose).

"In California, Democrats and Republicans are joining forces to prioritize the health and safety of our children and we are proud to be leading the nation with a bipartisan, science-based approach. This new legislation will ensure that schools are serving our students the healthy, nutritious meals they need and deserve," said Gabriel.

Health threats of UPF

Ultra-processed foods are industrially manufactured, chemically modified products that are often filled with harmful additives to enhance taste, texture, appearance, and durability.

Experts say ultra-processed food and drinks trick people into eating more of them than they want - that the products, especially soda, are engineered to evoke a desire to consume more.

Scientific research has linked UPFs to serious health harms, including cancer, cardiovascular disease, Type 2 diabetes, metabolic disorders (such as Crohn's disease and fatty liver disease), reproductive harm, neurobehavioral harm, and mental health issues.

Obesity is chief among the health problems linked to UPF. Rates of obesity

in the U.S. and globally have skyrocketed in tandem with

the rising consumption of ultra-processed foods.

"Ultra-processed foods aren't just unhealthy -- they're engineered for overconsumption. Like addictive substances, they hijack the brain's reward system, making it difficult for people to cut back, even when facing serious health consequences," said Ashley Gearhardt, Ph.D. and professor of Psychology at the University of Michigan.

"America's diet is now dominated by ultra-processed foods, many of which were shaped by the same corporate strategies that once hooked people on cigarettes. The result? Rising rates of obesity, diabetes, and diet-related diseases, especially in children," added Gearhardt.

Food companies have consistently opposed efforts to regulate UPFs and market and sell these products to California consumers without disclosing their potential harms.

Landmark UPF legislation

A.B. 1264 would, if signed into law, establish a first-ever statutory definition for UPFs. It would also direct California's Office of Environmental Health Hazard Assessment - in cooperation with leading experts from the University of California - to identify a subcategory of "particularly harmful" UPFs that should be phased out of school meals by 2032.

"Processed food can be part of a healthy diet, but Americans, especially our kids, are eating too many ultra-processed foods, leading to higher rates of cancer, cardiovascular disease and diabetes," said Scott Faber, the Environmental Working Group's senior vice president for government affairs.

"By identifying and phasing out the most harmful UPF from California's school food, A.B. 1264 will send the right signal to the companies selling food to our schools. EWG applauds Assemblymember Gabriel for once again making the health of California's kids his top priority," added Faber.

The bill would charge state scientists with determining whether a product qualifies as a "particularly harmful" UPF based on the following factors:

* Whether the product includes additives that are banned, restricted, or subject to warnings in other jurisdictions.

* Whether, based upon scientific research, the product or ingredients in the product are linked to cancer, cardiovascular disease, metabolic disease, developmental harms, reproductive harms, obesity, type 2 diabetes, or other health harms.

* Whether the product or ingredients in the product contribute to food addiction,

* Whether the product is high in fat, sugar, or salt.

California schools are projected to provide over 1 billion meals this school year. A.B. 1264 would protect students from harmful, addictive chemicals and ensure that all children - including those from disadvantaged backgrounds - can access healthy and nutritious foods.

"Healthy school meals are the fastest, most powerful way to create a healthier future for our children and our nation," said Nora LaTorre, CEO of EatReal.org

California leads the way

In recent years, California has helped to change the national conversation about food safety and school nutrition. Over the past two years, the state has passed two landmark food laws authored by Gabriel with strong bipartisan support.

The California School Food Safety Act, signed into law in 2024, bans six harmful food dyes from being served in public schools. It came on the heels of a 2023 state-wide ban on the manufacture, distribution or sale of food containing the chemicals Red Dye No. 3, propyl paraben, brominated vegetable oil and potassium bromate.

California has long been a bellwether state. Now similar actions are sweeping the country, with food chemical bills introduced, debated and in some cases enacted in states from Arizona to Vermont, including Illinois

, Pennsylvania and New York.

Gov. Gavin Newsom issued an executive order

in January directing California agencies to look for new ways to minimize the harms of UPF consumption and reduce the purchase of soda, candy and other types of UPF, including foods that contain artificial dye.

"Poor nutrition in childhood, predominantly due to processed foods which are high in added sugars and low in nutrient quality, is a major and modifiable factor contributing to life-long risk for chronic diseases including obesity, type 2 diabetes, fatty liver disease and heart disease and also affects learning and classroom performance," said Michael Goran, Ph.D and program director for nutrition and obesity at Children's Hospital Los Angeles and professor and vice chair for research with the Department of Pediatrics at Keck School of Medicine of USC.

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The Environmental Working Group (EWG) is a nonprofit, non-partisan organization that empowers people to live healthier lives in a healthier environment. Through research, advocacy and unique education tools, EWG drives consumer choice and civic action.

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